



Tribunals Ontario
Landlord and Tenant Board

Instructions: Form T4

Tenant Application – Landlord did not Comply with an Agreement to Increase the Rent Above the Guideline

(Disponible en français)

Table of Contents

- Section A:** [When to use this application](#)
- Section B:** [Steps you must take before filing the application](#)
- Section C:** [How to complete this application](#)
- Section D:** [What to include when you file your application](#)
- Section E:** [How to file your application](#)
- Section F:** [What to do if you have any questions](#)

Section A: When to use this application

You can use this application to apply to the Landlord and Tenant Board (LTB) to have all or part of the rent increase above the guideline returned to you, if you and the landlord:

- signed an Agreement to Increase the Rent Above the Guideline (Form N10), **and**
- the landlord failed to comply with all or part of what the agreement required the landlord to do.

You must file this application within two years of the date of the rent increase set out in the agreement.

[Return to Top](#)

Section B: Steps you must take before filing the application

Before you file this application, you and your landlord must have signed an Agreement to Increase the Rent Above the Guideline (Form N10) and the landlord must have failed to comply with all or part of what the agreement required the landlord to do. This form is available from the LTB website at tribunalsontario.ca/ltb.

[Return to Top](#)

Section C: How to complete this application

Read these instructions before completing the application form. You are responsible for ensuring that your application is correct and complete. Follow the instructions carefully when you complete the application form.

- Print clearly or type and do not touch the edges of the boxes.
- If there are more boxes in a line than you need, start from the left and leave the extra boxes blank.
- Do not fill in boxes that do not apply to you (for example, if you do not have a fax number, do not fill in boxes in the space marked "Fax Number").
- If the instructions tell you to shade a box or a circle (for example, circles marked "Yes" or "No"), shade the box or circle completely.

Page 2 of 6

Related Applications

If you or your landlord have filed other applications that relate to this rental unit, and those applications **have not** been resolved, fill in the file numbers in the space provided.

Part 2: Explanation of your application

Complete the information as follows:

1. Fill in the date your rent was increased.
2. Fill in the amount of the increase that was above the guideline.
 - Calculate the amount of rent that was charged above the guideline.

Example: Allen Wong moved into the rental unit on May 1, 2013. At that time, he paid a rent of \$750.00 per month. Allen and his landlord signed an Agreement to Increase the Rent Above the Guideline which set out that his rent would increase to \$775.00 on June 1, 2014 and in return the landlord would install new kitchen cupboards by July 1, 2014. The landlord never installed the cupboards, and on August 15, 2014 Allen applied to the LTB.

The rent increase guideline for 2014 was 0.8%.

$0.8\% \times \$750.00 = \6.00 (Allowed Guideline Increase)

$\$775.00 - \$750.00 = \$25.00$ (Agreed Increase in Rent)

$\$25.00 - \$6.00 = \$19.00$ (Amount of Rent Charged above the Guideline)

3. Explain which terms of the agreement the landlord did not comply with. Attach additional sheets if necessary.

Rent History

Enter the date you moved into the rental unit.

Rent Amount and Rent Period

You must provide a rent history for the past two years, or, if you have lived in the rental unit less than two years, you must provide a rent history from the date you moved into the rental unit to the present.

Example:

Allen Wong moved into the rental unit on May 1, 2013. At that time, he paid a rent of \$750.00 per month. Allen and his landlord signed an Agreement to Increase the Rent Above the Guideline which set out that his rent would increase to \$775.00 on June 1, 2014 and in return the landlord would install new kitchen cupboards by July 1, 2014. The landlord never installed the cupboards, and on August 15, 2014 Allen applied to the LTB.

Here is how he would fill out the Rent History table:

Rent Amount \$ (per month / per week)		Rent Period	
		From: (dd/mm/yyyy)	To: (dd/mm/yyyy)
\$	7 5 0 . 0 0	0 1 / 0 5 / 2 0 1 3	3 1 / 0 5 / 2 0 1 4
\$	7 7 5 . 0 0	0 1 / 0 6 / 2 0 1 4	3 1 / 0 7 / 2 0 1 4
\$			
\$			

I am required to pay rent by the ☒ month ☐ week ☐ other (specify)

Shade the appropriate circle to indicate whether you pay rent by the **month**, **week** or **other**. If you choose “other”, fill in the frequency of rent payments (for example, bi-weekly) in the space provided.

Part 3: Signature

If you are the tenant, shade either the circle marked “Tenant 1” or “Tenant 2” depending on whether you filled in your name under “Tenant 1” or “Tenant 2” on page 1 of the form. Then, sign the application form and fill in the date.

If you are the tenant’s representative, shade the circle marked “Tenant’s Representative”. Then, sign the application form and fill in the date.

Request for accommodation or French-language services

The LTB wants to ensure that everyone who uses its services can ask for and receive accommodation and/or French Language services in order to be able to participate in its proceedings on an equal basis.

Shade the appropriate box or boxes on the form to indicate whether you need accommodation under the Ontario *Human Rights Code*, French-language services or both. The LTB will not include a copy of this form when we give the other parties a copy of the application form. However, the information will be included in your application file. The file may be viewed by other parties to the application.

If you require accommodation under the *Human Rights Code*, explain what services you need in the space provided.

Payment information form

Complete this form to provide the LTB with the information required to process your application. Your application will not be accepted if you do not pay the application fee at the time you file the application. If you owe money to the LTB as a result of failing to pay a fee or any fine or costs set out in an order, your application may be refused or discontinued.

You may request a fee waiver if you meet the financial eligibility requirements set out by the LTB. You will need to complete the [Fee Waiver Form](#) which is available from the LTB website at tribunalsontario.ca/lrb. For more information about fee waivers and the eligibility criteria, go to the fee waiver rules and practice direction on the [Rules of Practice](#) page of LTB website.

Payment Method

Shade the appropriate box to show whether you are paying by online payment, money order, certified cheque, Visa or MasterCard. You can [pay online](#) using a debit or credit card. If you pay online, email your receipt and application to LTBpayments@ontario.ca.

If you are filing my mail or courier, you can pay by credit card by completing the [Credit Card Payment Form](#) and submitting it with your application. You cannot pay by cash or debit card if you are filing your application by mail or courier.

[Return to Top](#)

Section D: What to include when you file your application

To file this application, you must include the following:

- The completed T4 application form,
- The application fee. For a list of the [LTB's](#) fees visit the [Filing and Fees webpage](#).

Your application will be refused if any of the items listed above are missing.

You should also include a copy of the *Form N10 Agreement to Increase the Rent above the Guideline* you and the landlord signed, and any additional supporting documents related to the agreement.

[Return to Top](#)

Section E: How to file your application

You can file your application in one of the following ways:

1. File by Email, Pay Online

You can [pay online](#) using a debit or credit card. If you pay online, email your receipt and application to LTBpayments@ontario.ca.

2. By Mail or courier

Mail or courier your T4 application to the nearest [LTB](#) office.

To find a list of [LTB office locations](#) visit the [LTB](#) website at tribunalsontario.ca/ltb. You can also call the [LTB](#) at 416-645-8080 or 1-888-332-3234 (toll-free).

If you mail or courier your application, you can pay the application fee by certified cheque, money order, Visa or MasterCard. Certified cheques and money orders must be made payable to the Minister of Finance. If you are filing by mail or courier and paying by Visa or Mastercard, you must complete the [Credit Card Payment Form](#) and submit it with your application.

3. By Fax

Effective December 31, 2021, the [LTB](#) has decommissioned its fax machines assigned to regional offices. This means that except for a limited number of circumstances, the [LTB](#) no longer accepts documents, including applications, by fax.

If you must use fax to file applications or submit documents urgently because you don't have access to a computer and/or internet or can't visit a local ServiceOntario office, applicants can fax applications and documents that don't have a fee associated, or where they are eligible for a fee waiver, to 1-833-610-2242 or (416) 326-6455.

Due to Payment Card Industry (PCI) security compliance requirements, the [LTB](#) cannot accept credit card payment via fax. Applications with credit card information will be automatically deleted and not processed. Please contact the [LTB](#) at 1-888- 332-3234 for information on how to submit payment information.

[Return to Top](#)

Section F: What to do if you have any questions

You can visit the [LTB](#) website at: tribunalsontario.ca/ltb.

You can call the [LTB](#) at 416-645-8080 from within the Toronto calling area, or toll- free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the [LTB](#)'s processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.

[Return to Top](#)

August 2023